

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #01	CCRB Case #: 201606171	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 07/16/2016 7:20 PM	Location of Incident: intersection of West 154th Street and Frederick Douglass Boulevard, in Manhattan; PSA 6 stationhouse	18 Mo. SOL 1/16/2018	Precinct: 32		
Date/Time CV Reported Mon, 07/18/2016 12:10 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/18/2016 12:10 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Carlos Pimentel	07608	953255	PSA 6
2. POM Juan Carrero	00160	938174	PSA 6

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM George Suiu	08234	957195	PSA 6
2. POM Sean Tyrrell	08273	957235	PSA 6
3. SGT Christian Sanchez	5453	947847	PSA 6

Officer(s)	Allegation	Investigator Recommendation
A . POM Carlos Pimentel	Abuse: At the intersection of West 154th Street and Frederick Douglass Boulevard in Manhattan, Police Officer Carlos Pimentel stopped § 87(2)(b)	A . Substantiated
B . POM Juan Carrero	Abuse: At the intersection of West 154th Street and Frederick Douglass Boulevard in Manhattan, Police Officer Juan Carrero questioned § 87(2)(b)	B . Unsubstantiated
C . POM Carlos Pimentel	Abuse: At the intersection of West 154th Street and Frederick Douglass Boulevard in Manhattan, Police Officer Carlos Pimentel searched § 87(2)(b)	C . Substantiated
D . POM Juan Carrero	Abuse: At the intersection of West 154th Street and Frederick Douglass Boulevard in Manhattan, Police Officer Juan Carrero searched § 87(2)(b)	D . Unsubstantiated
E . POM Carlos Pimentel	Abuse: At the PSA 6 stationhouse, Police Officer Carlos Pimentel strip-searched § 87(2)(b)	E . Unfounded
F . POM Juan Carrero	Abuse: At the PSA 6 stationhouse, Police Officer Juan Carrero strip-searched § 87(2)(b)	F . Unfounded

Case Summary

On July 18, 2016 § 87(2)(b) filed this complaint on behalf of her twenty-three year-old son, § 87(2)(b) via telephone. On July 16, 2016, at approximately 7:20 PM, PO Carlos Pimentel of the PSA 6 Anti-Crime team, who was with Sgt. Christian Sanchez and PO Juan Carrero of the PSA 6 Anti-Crime team, stopped § 87(2)(b) on the northwest corner of West 154th Street and Frederick Douglass Boulevard in Manhattan (**Allegation A**). PO Carrero then allegedly asked § 87(2)(b) if he had any narcotics on his person (**Allegation B**), to which § 87(2)(b) responded that he did not. Subsequently, PO Pimentel allegedly searched § 87(2)(b)'s right-side front and rear pants pockets (**Allegation C**) while PO Carrero allegedly reached into § 87(2)(b)'s left-side front and rear pants pockets (**Allegation D**). PO Pimentel recovered what was alleged to be a gravity knife from § 87(2)(b)'s right-side front pants pocket, at which point he placed § 87(2)(b) under arrest. Sgt. Sanchez, PO Pimentel, and PO Carrero transported § 87(2)(b) to the PSA 6 stationhouse via RMP. At the PSA 6 stationhouse the officers lodged § 87(2)(b) in a cell. PO Pimentel and PO Carrero then allegedly entered the cell and strip-searched § 87(2)(b) to negative results (**Allegations E and F**). § 87(2)(b) was released with a Desk Appearance Ticket. He was charged with § 87(2)(b). There is no video associated with this case.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- Mediation was offered to § 87(2)(b) and § 87(2)(b) when they visited the CCRB on July 29, 2016. § 87(2)(b) rejected mediation § 87(2)(b)
- On October 11, 2016 the Office of the Comptroller informed the undersigned investigator via email that no notice of claim filed has been filed in regards to this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b)
- § 87(2)(b) has been involved in three previous CCRB complaints. § 87(2)(g)
- PO Pimentel has been a subject in four previous CCRB cases. In case #201403087 it was alleged that PO Pimentel stopped and searched an individual; both allegations were closed as unsubstantiated. In case #201408286 it was alleged that PO Pimentel stopped an individual; that case was truncated. In case #201603576 it was alleged that PO Pimentel

stopped, frisked, and searched; the stop allegation was substantiated and both the frisk and the search allegations were closed as exonerated. In regards to the one substantiated allegation, the CCRB recommended Formalized Training. No NYPD disposition is yet available.

- PO Carrero has been a subject in two previous CCRB complaints. In case #200809407 it was alleged that PO Carrero questioned an individual as to whether or not he had been drinking; that allegation was closed as unsubstantiated. No allegations made against PO Carrero have been substantiated.

Potential Issues:

- § 87(2)(b) (Board Review 01) stated that when PO Pimentel stopped him, he was with two friends known to him only as § 87(2)(b) and “§ 87(2)(b) § 87(2)(b) and § 87(2)(b) who were not stopped, continued on their way. § 87(2)(b) was unable to provide any additional identifying information for either individual. He was able to provide a phone number for § 87(2)(b) but provided no contact information at all for § 87(2)(b) § 87(2)(b) stated he would provide additional identifying and contact information if able to obtain it. Between August 5, 2015 and August 12, 2016 the undersigned left four voicemail messages at the number provided for § 87(2)(b). On August 12, 2016 the undersigned reached an individual who stated that she had no familiarity with anyone named § 87(2)(b) or any similar name. Thereafter, on August 23, 2016, the undersigned reached § 87(2)(b) who corrected the phone number he had initially provided for § 87(2)(b). He stated that he had not obtained any additional contact information for § 87(2)(b) or § 87(2)(b) but, again, would provide such information if possible. On August 23 and 25, 2016 the undersigned left voicemail messages at the new phone number. On August 23, 2016 Mgr. Almeyda performed a CLEAR reverse phone lookup for this phone number, which returned the name “§ 87(2)(b) § 87(2)(b)” but no additional information. An August 23, 2016 lexis Nexis search returned 28 discrete results for individuals by that name within the confines of New York City. Ultimately, on September 12, 2016, the undersigned attempted to contact § 87(2)(b) at the corrected phone number and reached an individual who stated that he did not have any familiarity with anyone named § 87(2)(b) and that he was out of the country on July 16, 2016. As of the writing of this report § 87(2)(b) has not provided any additional identifying or contact information for either § 87(2)(b) or § 87(2)(b) § 87(2)(g) § 87(2)(b).
§ 87(2)(b).
- On July 22, 2016 investigators from the Field Team visited the vicinity of West 154th Street and Frederick Douglass Boulevard in order to canvass for video and witnesses. The Field Team learned that the surveillance system at First Stop Gourmet Deli, adjacent to the incident location, was installed on July 18, 2016 – two days after the incident. The Field Team also visited Hukah Candy Shop, located adjacent to First Stop Gourmet Deli. The employees of this business stated that only one employee, who was not present, had access to the surveillance system. However, this employee spoke only Arabic. Subsequently, after several contact attempts, on July 28, 2016 Inv. Butler, an Arabic speaker, contacted the employee in question via telephone. This employee stated that video was preserved for only ten days, and as such video from the date of the incident was unavailable. No other businesses in the vicinity of the incident location have exterior surveillance cameras.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation A—Abuse of Authority: At the intersection of West 154th Street and Frederick Douglass Boulevard in Manhattan, Police Officer Carlos Pimentel stopped § 87(2)(b) [REDACTED]

§ 87(2)(b) [REDACTED] stated that prior to the incident he was walking northbound on the west side of Frederick Douglass Boulevard, a four lane roadway with two northbound lanes and two southbound lanes. In his front right-side pants pocket he carried a knife, which he used to open packages of food at his place of work, the § 87(2)(b) [REDACTED]. The knife was not a gravity knife and could not be opened with centrifugal force. The knife's handle bore a camouflage pattern and the blade was between three and four inches long. There was a clip on the handle of the knife, but the knife was not clipped to § 87(2)(b) [REDACTED]'s pocket or any other part of his clothing. Rather, he carried the knife loose in the bottom of his front right pants pocket. Although § 87(2)(b) [REDACTED] wore close-fitting blue jeans, he did not believe that any item in his pockets created a visible bulge.

As noted above, § 87(2)(b) [REDACTED] was walking with two acquaintances: § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED]. § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] crossed West 155th Street and continued to walk northbound on Frederick Douglass Boulevard. However, § 87(2)(b) [REDACTED] decided that he was hungry and wanted to purchase food from a restaurant located on West 150th Street. § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] agreed to join him, and they all turned around to walk southbound.

As § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] turned around, § 87(2)(b) [REDACTED] saw several men, whom he believed to be police officers, in what appeared to him to be an unmarked RMP, driving northbound on the opposite side of Frederick Douglass Boulevard, across the street from him. The men inside the vehicle were looking out of the windows at § 87(2)(b) [REDACTED]. § 87(2)(b) [REDACTED] began to walk southbound on the west side of Frederick Douglass Boulevard with § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED]. He did not see where the unmarked vehicle, now behind him, went. He did not see if the vehicle turned around.

§ 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] walked southbound on the west side of Frederick Douglass Boulevard without incident. However, when he, § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] reached the northwest corner of West 154th Street and Frederick Douglass Boulevard, and were about to cross West 154th Street, the same vehicle turned from Frederick Douglass Boulevard onto West 154th Street, appearing in front of § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] and cutting them off. Sgt. Sanchez, PO Pimentel, and PO Carrero exited the vehicle and immediately approached § 87(2)(b) [REDACTED]. PO Carrero instructed § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] to continue on their way, and they did so, leaving § 87(2)(b) [REDACTED] with the officers.

§ 87(2)(b) [REDACTED] (Board Review 05), an acquaintance of § 87(2)(b) [REDACTED]s, stated that at the time of the incident she was in an apartment § 87(2)(b) [REDACTED], in Manhattan,

approximately one half-block away from the incident location. § 87(2)(b) was sitting at the window and watching the intersection of Frederick Douglass Boulevard and West 154th Street. § 87(2)(b) observed a young male standing on the northwest corner of that intersection. § 87(2)(b) later identified this individual as § 87(2)(b) when she discussed the incident with § 87(2)(b). At the time § 87(2)(b) did not appear to § 87(2)(b) to be doing anything illegal. A marked RMP pulled up in front of § 87(2)(b) and two uniformed officers exited. § 87(2)(b) was too far away to see if there was any sort of item clipped to the inside or outside of any of § 87(2)(b)'s pants pockets. § 87(2)(b) did not hear anything § 87(2)(b) or the officers said, as she was too far away. § 87(2)(b) did not recall how long she watched the encounter. She decided to go down to the street to see what was taking place, but when she got to the street, § 87(2)(b) and the officers were gone.

PO Pimentel stated that prior to the incident he was the operator of the RMP. Sgt. Sanchez sat beside him in the front passenger's seat and PO Carrero sat behind Sgt. Sanchez in the rear passenger's-side seat. As PO Pimentel drove southbound on Frederick Douglass Boulevard on the west side of the street, between West 154th Street and West 155th Street, § 87(2)(b) and a second individual were walking southbound on the sidewalk on the west side of the street, on the officers' right-hand side. When the RMP passed § 87(2)(b) § 87(2)(b) was approaching West 154th Street. As PO Pimentel made a right-hand turn from Frederick Douglass Boulevard onto West 154th Street, he observed a metal clip at the top of § 87(2)(b)'s right front jeans pocket. PO Pimentel could not see what the clip was attached to but he knew that it was a knife clip because of numerous previous interactions and arrests involving knives with similar clips. Additionally, PO Pimentel observed a bulge in § 87(2)(b)'s right front jeans pocket underneath the metal clip, indicating an object approximately two inches wide and eight inches long inside of § 87(2)(b)'s pocket. PO Pimentel was between fifteen and eighteen feet from § 87(2)(b) when he made these observations. PO Pimentel pointed out the knife to both PO Carrero and Sgt. Sanchez and he believed that they both observed the knife clip.

PO Pimentel stopped the RMP as soon as he made this observation, in the middle of the right-hand turn from Frederick Douglass Boulevard onto West 154th Street. The RMP was standing in the crosswalk in front of § 87(2)(b). The officers exited the RMP and approached § 87(2)(b). PO Pimentel, who was in plainclothes, removed his shield from inside of his shirt as he approached. The other individual, who was walking with § 87(2)(b), continued walking southbound on Frederick Douglass Boulevard Avenue, but § 87(2)(b) stopped. According to PO Pimentel, he considered the knife to be in plain view and did not consider this to be an investigative stop.

In addition, PO Pimentel noted in his memo book (Board Review 06) that, "At T/P/O deft. was observed in possession of a gravity knife, right front jeans pocket," § 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

PO Carrero confirmed that at the time of the incident, PO Pimentel was the RMP's operator, Sgt. Sanchez rode in the front passenger's seat, and PO Carrero sat in the rear on the passenger's side. According to PO Carrero, while the RMP headed northbound on Frederick Douglass Boulevard, between West 154th Street and West 155th Street, PO Pimentel announced that he had observed a male who appeared to have a knife. PO Carrero asked who the person was, but PO Pimentel did not

provide any other information about the individual. PO Carrero then observed § 87(2)(b) at the corner of West 155th Street and Frederick Douglass Boulevard. Although PO Carrero initially stated that § 87(2)(b) was walking southbound at the time of PO Pimentel's observation, he later stated that this § 87(2)(b) was standing still at that time. PO Carrero did not recall if he saw any item clipped to § 87(2)(b)'s right front pocket at this time. PO Pimentel made a U-turn to head southbound on Frederick Douglass Boulevard, and the officers approached § 87(2)(b) in the RMP as he neared the intersection of West 154th Street and Frederick Douglass Boulevard.

According to PO Carrero, as the RMP neared § 87(2)(b) PO Pimentel again pointed out § 87(2)(b) to the other officers. PO Carrero did he remember if § 87(2)(b) was with anyone at this time. § 87(2)(b) was approximately ten feet from the corner of West 154th Street and Frederick Douglass Boulevard as the officers drove past him. His right side was facing away from the officers as the RMP passed him. PO Pimentel pulled the RMP over on the southwest corner of West 154th Street and Frederick Douglass Boulevard. All of the officers exited their RMP, crossed West 154th Street, and approached § 87(2)(b) who was approaching the northwest corner.

PO Carrero stated that at this time PO Pimentel moved closest to § 87(2)(b) near § 87(2)(b)'s right side. PO Carrero initially stated that he believed that part of a knife was visible as they approached, but he later recanted, stating that he was unable to see any part of the knife before PO Pimentel removed it from § 87(2)(b)'s pocket. PO Carrero clarified that he was on § 87(2)(b)'s left side and was unable to see § 87(2)(b)'s right front pocket from that position. PO Carrero did not observe a bulge in the area of § 87(2)(b)'s front right pocket, but maintained that he was not in a position to see any such bulge.

Sgt. Sanchez, like PO Carrero, stated that prior to the incident the RMP headed northbound on Frederick Douglass Boulevard, on the east side the street, between West 154th Street and West 155th Street. PO Pimentel was the operator, Sgt. Sanchez was seated in the front passenger's seat, and PO Carrero was seated in the rear. As PO Pimentel drove northbound, he announced that he had observed someone with a knife clipped to his front right pants pocket. PO Pimentel pointed to § 87(2)(b) who was walking southbound on the sidewalk on the west side of Frederick Douglass Boulevard, between West 154th Street and West 155th Street. The RMP was fifteen to twenty feet away from § 87(2)(b) at this time. § 87(2)(b) was alone. Sgt. Sanchez could not see § 87(2)(b)'s right side at this time and did not observe the alleged knife. Sgt. Sanchez did not recall if PO Carrero said that he also observed a knife clip.

According to Sgt. Sanchez, PO Pimentel made a U-turn from the east side of Frederick Douglass Boulevard to the west side, heading southbound. § 87(2)(b) continued walking southbound on Frederick Douglass Boulevard. Sgt. Sanchez instructed PO Pimentel to let him out of the RMP, and PO Pimentel briefly stopped to allow Sgt. Sanchez to exit. Sgt. Sanchez exited the RMP north of § 87(2)(b) so that if § 87(2)(b) attempted to flee northbound, Sgt. Sanchez would be there to intercept him. Sgt. Sanchez was approximately one half-block north of § 87(2)(b) who approached West 154th Street.

PO Pimentel and PO Carrero, in the RMP, then continued southbound on Frederick Douglass Boulevard. The RMP caught up to § 87(2)(b) at the northwest corner of West 154th Street and Frederick Douglass Boulevard, where PO Pimentel stopped the RMP adjacent to § 87(2)(b) PO

Pimentel and PO Carrero exited and approached § 87(2)(b) Sgt. Sanchez continued walking southbound, approaching the officers and § 87(2)(b) § 87(2)(b) s back was to Sgt. Sanchez and he could not see § 87(2)(b) s front right side. He was not able to see if there was a knife clipped to § 87(2)(b) s right front pants pocket at this time. As addressed in greater detail below, in the analysis of Allegation C, by the time Sgt. Sanchez reached the corner, PO Pimentel had already removed the knife from § 87(2)(b) s pocket. Sgt. Sanchez did not recall if, when he eventually saw the knife, there was a clip attached to it.

According to *People v. De Bour* (40 N.Y.2d 210, 1976), reasonable suspicion of criminality is required for a forcible stop (Board Review 09). Further, according to *People v. Cruz* (2013 NY Slip Op 23116), the observation of a metal clip on an individual's pocket, without specific and articulable reason to believe that the clip is attached to a gravity knife does not give rise to reasonable suspicion of criminality (Board Review 10). According to *Cruz*, even given an officer's ability to determine that such a clip is in fact attached to a knife and not to an innocuous object, in absence of specific and articulable reason to believe that the knife in question is an illegal gravity knife rather than a legal pocket knife, such an observation does not give rise to reasonable suspicion.

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

§ 87(2)(g)

PO Pimentel testified that although he was unable to see the object to which the clip was attached, he recognized the clip as a knife clip on the basis of numerous previous interactions and arrests involving knives with similar clips, and because of the size and shape of the bulge created by an object ostensibly located inside of the pocket and beneath the clip. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation B—Abuse of Authority: At the intersection of West 154th Street and Frederick Douglass Boulevard in Manhattan, Police Officer Juan Carrero questioned § 87(2)(b)

§ 87(2)(b) stated that immediately after the officers approached him, PO Carrero asked if § 87(2)(b) had any drugs on him, and § 87(2)(b) replied that he did not.

§ 87(2)(b) stated that from her position one half-block away, she was unable to hear any statements made by § 87(2)(b) or the officers.

PO Carrero testified that he did not ask § 87(2)(b) any questions about the contents of his pockets. He did not ask § 87(2)(b) if he had any narcotics on his person and did not suspect that § 87(2)(b) had any narcotics on his person.

Sgt. Sanchez stated that as he proceeded down Frederick Douglass Boulevard, approaching PO Pimentel, PO Carrero, and § 87(2)(b) he could not hear any conversation taking place between § 87(2)(b) and the officers. To his knowledge PO Carrero did not ask § 87(2)(b) if he had narcotics on his person, and Sgt. Sanchez did not learn that PO Carrero did so at any point. Sgt. Sanchez, for his part, did not suspect that § 87(2)(b) had any narcotics on his person.

PO Pimentel testified that he did not suspect that § 87(2)(b) was in possession of narcotics. Further, to his knowledge neither PO Carrero nor Sgt. Sanchez suspected that § 87(2)(b) had

narcotics in person. At the scene of the arrest PO Carrero did not ask § 87(2)(b) if he had narcotics or “drugs” on his person.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C—Abuse of Authority: At the intersection of West 154th Street and Frederick Douglass Boulevard in Manhattan, Police Officer Carlos Pimentel searched § 87(2)(b)

According to § 87(2)(b) after PO Carrero questioned him, PO Pimentel, who stood on § 87(2)(b) § 87(2)(b) s right side, immediately reached into § 87(2)(b) s front and rear right-side pants pockets. PO Pimentel then removed the aforementioned knife from the bottom of § 87(2)(b) s front right-side pants pocket. As noted above, § 87(2)(b) maintained that the knife was not a gravity knife and could not be opened with centrifugal force.

PO Pimentel stated that when he approached § 87(2)(b) having already observed what he believed to be a knife clipped § 87(2)(b) s pocket, he asked § 87(2)(b) “What do you have there?” and pointed to § 87(2)(b) s right front jeans pocket. § 87(2)(b) responded that he had a knife, which he carried for his protection. PO Pimentel reached into § 87(2)(b) s right front jeans pocket and removed the knife, which was revealed to have a camouflage-patterned handle. PO Pimentel then handed the knife to Sgt. Sanchez, who tested it by flicking his wrist, determining it to be a gravity knife. As noted above, PO Pimentel considered the knife to be in plain view and did not consider this to be an investigative stop.

As addressed above, PO Carrero stated that when he, Sgt. Sanchez, and PO Pimentel approached § 87(2)(b) PO Pimentel moved closest to § 87(2)(b) near § 87(2)(b) s right side. PO Carrero initially stated that he believed that part of a knife was visible as they approached, but he later recanted, stating that he was unable to see any part of the knife before PO Pimentel removed it from § 87(2)(b) s pocket. PO Carrero clarified that he was on § 87(2)(b) s left side and was unable to see § 87(2)(b) s right front pocket from that position. As soon as PO Pimentel reached § 87(2)(b) he reached his hand into § 87(2)(b) s front right pocket and removed a knife. PO Carrero observed the knife when PO Pimentel removed it from § 87(2)(b) s pocket. PO Carrero believed that the knife had a clip on it, but he did not remember the color of the handle or any other physical details of the knife. PO Carrero did not remember if anyone tested the knife on scene.

Also as addressed above, Sgt. Sanchez stated that when PO Pimentel and PO Carrero exited the RMP and approached § 87(2)(b) approximately one half-block from Sgt. Sanchez, § 87(2)(b) s back was to him and he could not see § 87(2)(b) s front right side. Therefore he was unable to see if there was a knife clipped to § 87(2)(b) s right front pants pocket. However, Sgt. Sanchez observed PO Pimentel reach toward § 87(2)(b) s front right side from and appeared to remove an object from the area of § 87(2)(b) s front right pant pocket. From his position one half-block away, Sgt. Sanchez was unable to determine what sort of object PO Pimentel removed from § 87(2)(b) s pocket. When he reached the corner, however, PO Pimentel was holding a knife which he said he had just recovered from § 87(2)(b) PO Pimentel tested the knife in front of Sgt. Sanchez and demonstrated that it was a gravity knife.

According to *People v. De Bour* (40 N.Y.2d 210, 1976), an officer must have probable cause in order to search an individual (Board Review 09). According to *People v. Cruz* (2013 NY Slip Op 23116), the observation of a metal clip on an individual's pocket, without specific and articulable reason to believe that the clip is attached to a gravity knife does not give rise to reasonable suspicion of criminality (Board Review 10). Further, according to *Cruz*, even given an officer's ability to determine that such a clip is in fact attached to a knife and not to an innocuous object, in absence of specific and articulable reason to believe that the knife in question is an illegal gravity knife rather than a legal pocket knife, such an observation does not give rise to reasonable suspicion. Lastly, *Cruz* establishes that given the observation of a clip but in absence of specific and articulable reason to believe that an individual is in possession of a gravity knife, a search of that individual is not justifiable.

§ 87(2)(g)

§ 87(2)(g)

it is recommended that
Allegation C be closed as **substantiated**.

Allegation D—Abuse of Authority: At the intersection of West 154th Street and Frederick Douglass Boulevard in Manhattan, Police Officer Juan Carrero searched § 87(2)(b)

§ 87(2)(b) stated that while PO Pimentel searched his right side, PO Carrero, who stood on § 87(2)(b)'s left side, reached into § 87(2)(b)'s front and rear left-side pants pockets, removing § 87(2)(b)'s phone and cash from his left-side pockets.

PO Carrero stated that he did not place his hands into any of § 87(2)(b)'s pockets while at the scene of his arrest.

Sgt. Sanchez stated that from his position one half-block away from PO Pimentel, PO Carrero, and § 87(2)(b) at this time, he did not observe PO Carrero reach toward § 87(2)(b) or appear to reach into any of § 87(2)(b)'s pockets when PO Pimentel did so.

PO Pimentel testified that PO Carrero did not reach into any of § 87(2)(b)'s pockets, either before or after PO Pimentel removed the knife from § 87(2)(b)'s pocket.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E—Abuse of Authority: At the PSA 6 stationhouse, Police Officer Carlos Pimentel strip-searched § 87(2)(b)

Allegation F—Abuse of Authority: At the PSA 6 stationhouse, Police Officer Juan Carrero strip-searched § 87(2)(b)

As noted above, § 87(2)(b) alleged that Carrero questioned him about narcotics at the scene of the arrest. Further, § 87(2)(b) stated that en route from the scene of the arrest to the PSA 6 stationhouse, PO Carrero said to him, “If you have drugs, we’re gonna find them.” § 87(2)(b) again responded that he did not have any narcotics on his person.

§ 87(2)(b) continued that upon arrival at the PSA 6 stationhouse the officers lodged him in the middle cell of three holding cells. There was no one else in the cell with § 87(2)(b) but there were two other prisoners in the adjacent cells. § 87(2)(b) believed that they could hear what took place inside of his cell. The officers instructed § 87(2)(b) to remove his sneakers and belt, which he did. The officers then left the cell, closing the door behind them, and went to a room at the end of the cell area. There, Sgt. Sanchez, PO Pimentel, and PO Carrero spoke amongst themselves. § 87(2)(b) could see them but he could not hear their conversation.

PO Pimentel and PO Carrero then returned to § 87(2)(b)'s cell and entered. One of the officers told § 87(2)(b) to remove his socks, which he did. The officers then told him to remove his pants and turn them inside-out, which he did. The officers told him to remove his underwear, so he pulled his underwear down to his ankles. The officers told § 87(2)(b) to squat and cough, which he did. The officers then told § 87(2)(b) to put his clothing back on, and he did so. PO Pimentel and PO Carrero then departed from the cell area. While this took place, two other officers were using computers near the desk, and § 87(2)(b) could see them from his cell. § 87(2)(b) believed that they had arrested the prisoners who were in the adjacent cells.

The PSA 6 Prisoner Holding Pen Roster (Board Review 11) demonstrates that there were, in fact, two other prisoners at PSA 6 while § 87(2)(b) was there: § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) (Board Review 12) stated that there were two other prisoners in the cells at the PSA 6 stationhouse: a man with whom she was arrested § 87(2)(b) and a second man with whom she was unfamiliar. [The second male, unfamiliar to § 87(2)(b) is hereafter referred to as § 87(2)(b) § 87(2)(b) could not see into § 87(2)(b)'s cell from her cell, but she was able to hear § 87(2)(b) speaking to officers. § 87(2)(b) gathered that § 87(2)(b) had been arrested for having a knife on his person, which he told the officers that he used for work. The officers told § 87(2)(b) that he would be out of the stationhouse quickly. § 87(2)(b) was released after approximately thirty

minutes. The shortness of his stay at the stationhouse was noteworthy to § 87(2)(b) because she stayed there for approximately four hours. § 87(2)(b) did not hear § 87(2)(b) and the officers have any other conversation. § 87(2)(b) did not hear any officer giving § 87(2)(b) any instructions of any sort inside of his cell.

§ 87(2)(b) (Board Review 13) stated that at the PSA 6 stationhouse he was alone in a cell and § 87(2)(b) was placed in a separate cell, located two cells away from § 87(2)(b)'s cell. The cell between them was empty. After § 87(2)(b) and § 87(2)(b) arrived, a third individual [who is hereafter referred to as § 87(2)(b)] was placed in the middle cell. § 87(2)(b) saw § 87(2)(b) only when § 87(2)(b) was brought in and when § 87(2)(b) was brought out of his cell briefly to be fingerprinted. § 87(2)(b) did not hear § 87(2)(b) make any complaint to any officer about anything an officer said or did to him. § 87(2)(b) did not hear § 87(2)(b) and any officer discuss what § 87(2)(b) had been arrested for. § 87(2)(b) did not hear § 87(2)(b) say anything at all. § 87(2)(b) did not hear any officer give § 87(2)(b) any sort of instruction. § 87(2)(b) remembered § 87(2)(b) in particular because § 87(2)(b) was released from his cell after approximately fifteen minutes, whereas § 87(2)(b) remained at the stationhouse for much longer.

As noted above, PO Pimentel stated that he did not suspect § 87(2)(b) of possessing any narcotics, and to his knowledge, neither PO Carrero nor Sgt. Sanchez suspected that § 87(2)(b) had narcotics on his person. PO Pimentel stated further that en route to the PSA 6 stationhouse PO Carrero did not suggest that § 87(2)(b) might have narcotics on his person or make any mention of narcotics at all. PO Pimentel never said anything to § 87(2)(b) about drugs at any point and he never heard PO Carrero or Sgt. Sanchez say anything about drugs to § 87(2)(b) at any point.

PO Pimentel continued that at the PSA 6 stationhouse, when PO Pimentel lodged § 87(2)(b) in a cell, he asked § 87(2)(b) to remove his belt and shoelaces, and § 87(2)(b) did so. After § 87(2)(b) removed his belt PO Pimentel told § 87(2)(b) to place his hands on the wall so that he could again search § 87(2)(b). § 87(2)(b) complied. PO Pimentel searched § 87(2)(b)'s front and rear jeans pockets, per standard protocol when lodging a prisoner in a holding cell. When PO Pimentel finished searching § 87(2)(b) and removed his hands from § 87(2)(b)'s pockets, § 87(2)(b)'s pants fell down partway, to mid-thigh. PO Pimentel believed this occurred because § 87(2)(b) had removed his belt. When § 87(2)(b)'s pants fell down to mid-thigh, § 87(2)(b)'s underwear was exposed. PO Pimentel told § 87(2)(b) to pull his pants up and § 87(2)(b) did so.

PO Pimentel testified that he did not speak with Sgt. Sanchez about a strip-search and that Sgt. Sanchez did not authorize a strip-search. Further, PO Pimentel did not strip-search § 87(2)(b). PO Pimentel did not pull down § 87(2)(b)'s pants, either intentionally or accidentally. PO Pimentel did not instruct § 87(2)(b) to pull down his pants or to squat and cough. According to PO Pimentel there would not have been any reason to do so, as he did not suspect that § 87(2)(b) had any contraband on his person which would not be accessible via a normal search.

PO Carrero stated that en route to the PSA 6 stationhouse, he did not tell § 87(2)(b) that if he had drugs on him, the officers would find them at the stationhouse. PO Carrero did not suspect that § 87(2)(b) had narcotics or any other contraband on his person. No other officer mentioned narcotics to § 87(2)(b).

Upon arrival at the PSA 6 stationhouse PO Pimentel lodged § 87(2)(b) in a holding cell. After PO Carrero placed his firearm in his locker, he joined PO Pimentel in the cell area. § 87(2)(b)'s shoelaces and belt were removed, per standard protocol, before § 87(2)(b) was lodged into a cell. PO Pimentel performed a secondary search prior to placing § 87(2)(b) into a cell. This search was also per standard protocol.

While § 87(2)(b) was inside the cell, PO Pimentel instructed § 87(2)(b) to place his hands on the wall. § 87(2)(b) complied, at which time his pants accidentally fell down. His underwear was exposed at that time. § 87(2)(b) immediately picked his pants back up. § 87(2)(b) did not complain about his pants falling down. No officer intentionally pulled down § 87(2)(b)'s pants at any point. Neither PO Pimentel nor PO Carrero ever instructed § 87(2)(b) to remove his pants or to squat and cough. Neither PO Carrero nor PO Pimentel conducted a strip search of § 87(2)(b). PO Carrero did not suspect that § 87(2)(b) had narcotics or other contraband on his person which would not have been accessible during a normal search. The officers did not discuss the possibility of a strip search with Sgt. Sanchez and Sgt. Sanchez did not authorize a strip search of § 87(2)(b). § 87(2)(b) did not complain that an officer had strip searched him.

As above, Sgt. Sanchez testified that he did not suspect that § 87(2)(b) had any narcotics on his person. Further, he stated that, en route to the stationhouse, PO Carrero did not say that if § 87(2)(b) had any drugs or narcotics on his person, the officers would find them. En route, there was no conversation about narcotics whatsoever. To Sgt. Sanchez's knowledge neither PO Carrero nor PO Pimentel suspected that § 87(2)(b) had narcotics on his person. Sgt. Sanchez never learned that either officer spoke with § 87(2)(b) about narcotics at any point.

Sgt. Sanchez stated further that, at the stationhouse, he was not present when PO Carrero and PO Pimentel lodged § 87(2)(b) in a cell, as he remained at the desk filling out the arrest stamp for § 87(2)(b). The cells were located behind the desk but the cell area was not visible from the desk. Only the doorway to the cell area was visible from the desk, and Sgt. Sanchez did not hear what was taking place in the cells.

Sgt. Sanchez did not hear or witness any interaction between PO Carrero or PO Pimentel and § 87(2)(b) in the cell area. To Sgt. Sanchez's knowledge neither PO Pimentel nor PO Carrero ever gave § 87(2)(b) any instruction to remove his pants or underwear, or to squat and cough. To his knowledge PO Pimentel and PO Carrero never removed § 87(2)(b)'s pants, conducted a strip-search, or discussed a strip-search. Sgt. Sanchez never authorized a strip-search. Further, Sgt. Sanchez never had any suspicion that § 87(2)(b) had on his person any weapon or contraband which would not be accessible via a normal search. Lastly, Sgt. Sanchez never learned that § 87(2)(b)'s pants fell down at any point at the stationhouse.

PO George Suiu of PSA 6 (Board Review 14), who arrested § 87(2)(b) and § 87(2)(b) and his partner, PO Sean Tyrrell of PSA 6 (Board Review 15), stated that of the three cells at the PSA 6 stationhouse, they lodged one of their prisoners in the rightmost cell and one of the prisoners in the leftmost cell. There were two computers across from the cells, in the cell area. One was positioned so that someone seated at the computer faced toward cells; the other was positioned so that someone seated at the computer faced away from the cells. PO Suiu and PO Tyrrell remained in the

cell area processing the arrests for the entire period of time during which their prisoners were at the stationhouse. PO Suiu sat at the computer which was positioned so that he faced away from the cells; PO Tyrrell sat facing toward the cells. Neither PO Suiu nor PO Tyrrell remembered if there was any other prisoner at the stationhouse at the same time as § 87(2)(b) and § 87(2)(b). They did not recall if any third prisoner was lodged in the center cell. Neither PO Suiu nor PO Tyrrell remembered if Sgt. Sanchez, PO Carrero, or PO Pimentel made any arrest the same day or was present at the stationhouse. Further, both PO Suiu and PO Tyrrell stated that they did not observe PO Pimentel or PO Carrero conduct a strip-search of any individual at the PSA 6 stationhouse; they did not hear either PO Pimentel or PO Carrero give any prisoner any instruction consistent with a strip-search; and they did not hear PO Pimentel, PO Carrero, or Sgt. Sanchez discuss any suspicion that any prisoner had narcotics or other contraband on his or her person. Neither PO Suiu nor PO Tyrrell heard Sgt. Sanchez, PO Pimentel, or PO Carrero discuss a strip-search or learned from any civilian or member of the NYPD about any strip-search conducted by PO Pimentel or PO Carrero.

Neither the PSA 6 command log (Board Review 16) nor § 87(2)(b)'s arrest report (Board Review 08) indicates that § 87(2)(b) was strip-searched.

§ 87(2)(b)

§ 87(2)(g)

it is recommended that

Allegations E and F be closed as unfounded.

Squad: 1

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date